IN THE DISTRICT COURT OF APPEAL OF THE

STATE OF FLORIDA, FOURTH DISTRICT

Case No. 4D2025-0117; LT. No. CACE23-007025

LOUISE HADDAD,
Appellant,

v.

LYFT FLORIDA, INC., et al.,
Appellees.

On appeal from the Seventeenth Judicial Circuit in and for Broward County, Florida

AMICUS BRIEF OF FLORIDA JUSTICE ASSOCIATION IN SUPPORT OF APPELLANT'S MOTION FOR REHEARING, REHEARING EN BANC, AND CERTIFICATION

David Joseph Sales, Esq.
Barnes Trial Group
1104 N Howard Ave Fl Street 3d
Tampa, FL 33607
(813) 251-0777
ds@btglaw.com

Andrew A. Harris, Esq.
HARRIS APPEALS, P.A.
5220 Hood Road/Suite 201
Palm Beach Gardens, FL 33418
(561) 867-9500
andrew@harrisappeals.com
eservice@harrisappeals.com
Counsel for the amici curiae

Blair M. Fazzio, Esq.
Kanner & Pintaluga
6600 N. Military Trail, 2nd Floor
Boca Raton, FL 33496
Tel: (800) 586-5555
bfazzio@kpattorney.com
Co-Counsel for the amici curiae

TABLE OF CONTENTS

IDENTITY AND INTEREST OF THE AMICI 5

SUMMARY OF ARGUMENT 8

ARGUMENT 10

I. Drivers for Uber and Lyft Have Reportedly Committed Tens of Thousands of Sexual Assaults against Women, and Several Hundred of the Assaults Were Committed in Florida, against Florida Residents. 10

II. The Court Should Certify Questions of Great Public Importance to the Florida Supreme Court. 14

III. The Court Should Grant Rehearing or Rehearing En Banc, and Hold that the TNC Statute Does Not Immunize a TNC from Liability for Its Own, Independent Wrongdoing. 24

CONCLUSION 29

Certificate of Service 31

Certificate of Compliance 32

TABLE OF AUTHORITIES

Cases

Abner v. Lyft Florida, Inc., 422 So. 3d 1226 (Fla. 3d DCA 2025) 25

Am. Home Assur. Co. v. Nat'l Railroad Pass. Corp., 908 So. 2d 459 (Fla. 2005) 24

City of Fort Pierce v. Treasure Marina, LC, 195 So. 3d 1141 (Fla. 4th DCA 2016) 22

Doe v. Uber Technologies, Inc., et al., No. 23-CA-006624 (13th Cir.) 13

Emerson v. Lambert, 374 So. 3d 756 (Fla. 2023) 28

Estate of Jones v. Mariner Health Care of Deland, Inc., 955 So. 2d 43 (Fla. 4th DCA 2007) 22

Grobman v. Posey, 863 So. 2d 1230 (Fla. 4th DCA 2003) 24

In Re: Lyft, Inc. Passenger Sexual Assault Litigation, No. 3:26-md-03171-RFL (N.D. Cal.) 7

In Re: Lyft Rideshare Cases, No. CJC-20-005061, Jud. Council Coordination Proceeding No. 5061 (Cal. Super.) 7

In Re: Uber Rideshare Cases, No. CJC-21-005188, Jud. Council Coordination Proceeding No. 5188 (Cal. Super.) 7

In Re: Uber Technologies, Inc., Passenger Sexual Assault Litigation, No. 3:23-md-03084-CRB (N.D. Cal.) 7

Siegle v. Progressive Consumers Ins. Co., 788 So. 2d 355 (Fla. 4th DCA 2001) 22

State v. McKendry, 614 So. 2d 1158 (Fla. 4th DCA 1993) 22

Testa v. Town of Jupiter Island, 360 So. 3d 722 (Fla. 4th DCA 2023) 21

Thornber v. City of Ft. Walton Beach, 568 So. 2d 914 (Fla. 1990) 28

Statutes

Section 627.748(15), Florida Statutes 19

Section 627.748(18), Florida Statutes 6, 29, 30

IDENTITY AND INTEREST OF THE AMICI

The FJA is dedicated to strengthening and upholding Florida's civil justice system and protecting the rights of Florida's citizens and consumers. The FJA was founded in 1961, and it currently has more than 3,500 members, including trial lawyers, consumer advocates, and injured victims. The FJA believes that all Floridians benefit when they have a fair chance to seek justice in our state's courts and that Florida's consumers are kept safer when wrongdoers are held accountable.

As part of this mission, FJA members represent many Florida women who were subjected to sexual misconduct, including assaults, batteries, and rapes, committed by Uber and Lyft drivers. The undersigned is the Vice-Chair of the FJA's amicus committee, with a broad perspective on the hundreds of claims raised by Florida victims in state and federal courts. Both the undersigned and co-amici counsel represent numerous Florida women[1] who have filed pending lawsuits, as well as contemplated lawsuits that

[1] Of course, there may be men who are victims of sexual misconduct as well. This Brief refers to the women who have brought claims and who will be bringing claims, but would equally apply to men if they bring claims.

will be timely filed seeking accountability for Uber and Lyft's independent negligence.

In these sexual misconduct lawsuits, their clients and the clients of other FJA members have alleged or will allege that independent, tortious conduct by Uber or Lyft was a proximate, but-for cause of sexual assaults by their Uber or Lyft drivers. The sexual assaults at issue involve everything from instances of unwanted physical contact between a driver and passenger to rape accompanied by other acts of extreme and depraved violence. Needless to say, the lives of countless women have been terribly and forever altered by their experiences as Uber and Lyft riders.

This case is of critical importance to the FJA because the panel's Opinion appears to establish a default rule of immunity to Uber and Lyft for nearly any claims of sexual misconduct by their drivers that is at odds with the Legislature's intent and statutory language in Section 627.748(18), Florida Statutes (the TNC statute). The panel's decision also directly affects the content and sufficiency of the pleadings victims have filed or will file, what they must prove against Uber and Lyft, the time and resources they and their

counsel must devote to their claims, and the very viability of those claims.

The panel's decision also raises the real potential for conflicting approaches taken in California-based state and federal litigation against Uber and Lyft, where many Florida women are bringing claims in class-wide litigation, and where those trial and district court judges may not be bound by the panel's decision.[2] Only a state supreme court decision can bring uniformity and predictability to victims of sexual misconduct, and Uber and Lyft.

The panel's decision also creates an inconsistency where sexual misconduct in an insurance context does not arise out of the wrongdoer's negligent conduct [meaning victims cannot bring claims under insurance policies], but sexual misconduct by Uber

---

[2] The proceedings in California against Uber and Lyft for sexual misconduct committed by their drivers: California state court proceedings: *In Re: Uber Rideshare Cases*, No. CJC-21-005188, Jud. Council Coordination Proceeding No. 5188 (Cal. Super.); *In Re: Lyft Rideshare Cases*, No. CJC-20-005061, Jud. Council Coordination Proceeding No. 5061 (Cal. Super.) (collectively, the "California state court proceedings"). California federal district court proceedings: *In Re: Uber Technologies, Inc., Passenger Sexual Assault Litigation*, No. 3:23-md-03084-CRB (N.D. Cal.); *In Re: Lyft, Inc. Passenger Sexual Assault Litigation*, No. 3:26-md-03171-RFL (N.D. Cal.) (collectively, the "California federal court proceedings").

and Lyft drivers against riders connected to a TNC digital network does arise out of Uber and Lyft's negligence [meaning victims cannot seek accountability against Uber and Lyft for their independent negligence].

Thus, the FJA joins the Appellant's request that this Court certify questions of great public importance to the Florida Supreme Court. The FJA proposes a slightly different question on one issue raised in Appellant's Motion for Rehearing, and the FJA also proposes additional questions. While the FJA also agrees with the Appellant's request to grant rehearing and rehearing en banc review, the FJA believes certification is warranted regardless of who prevails on the merits in the rehearing process. Only the Supreme Court can bring clarity and stability to this area of the law, for the hundreds of Florida-based victims of sexual misconduct bringing claims in Florida and other jurisdictions, as well as for TNC's.

SUMMARY OF ARGUMENT

Tens of thousands of women have been sexually assaulted by Uber and Lyft drivers. Several hundred Florida women have claims

against Uber and Lyft in which they allege or will allege that the sexual assaults resulted from Uber and Lyft's independent wrongdoing. The claims include negligence, negligent selection and retention claims, negligent and fraudulent misrepresentation claims, and product liability claims, all of which directly connect to allegations of negligence and/or intentional torts by the TNCs, as direct and derivative liability claims.

The panel's decision has the potential to significantly alter the course and viability of such claims. The Amici accordingly support Appellant's request for certification of a question of great public importance.

The Amici also support Appellant's request for rehearing and rehearing en banc. The Amici believe that the panel's construction of the TNC Statute cannot be reconciled with principles of statutory construction, the law of derivative liability as it differs from vicarious liability, or Uber's own public statements concerning how such a ride-sharing statute should operate. As explained by Appellant in her motion for rehearing, rehearing en banc, and certification, the panel's decision also has established an

inconsistent legal structure where sexual assault claims will be treated differently in the context of TNC claims and insurance coverage claims.

Amici also present a perspective for Supreme Court review that the Appellant may not have been able to express given she is a single plaintiff. The state and federal judges in the California proceedings, with hundreds of Florida victims of Lyft and Uber drivers, do not appear to be bound by the panel's decision. Moreover, Uber does not appear to have even raised the legal arguments in the California proceedings relied on by the panel in this case. There is now immense confusion and unpredictability for victims and TNC's, which only our state supreme court can resolve.

ARGUMENT

I. Drivers for Uber and Lyft Have Reportedly Committed Tens of Thousands of Sexual Assaults against Women, and Several Hundred of the Assaults Were Committed in Florida, against Florida Residents.

It is unquestionable that tens of thousands of women have been subjected to sexual assaults committed by drivers for Uber and Lyft. The frequency and circumstances of these assaults and

claims were profiled in an August 6 and 7, 2025 New York Times article entitled, "Uber's Festering Sexual Assault Problem."[3] The investigation by the *Times* reported that:

- Uber's public reporting about the frequency of sexual assaults by Uber drivers created a misleading picture about the seriousness of the risk of sexual assault faced by Uber passengers.
- Between 2017 and 2022 Uber had received more than 400,000 reports of sexual misconduct or assault-related complaints from passengers in the Unted States—approximately one such report every eight minutes.
- Uber's background-check policies allowed drivers with serious criminal convictions to still qualify as Uber drivers if their convictions fell outside the period considered by Uber.
- Uber kept drivers on its platform after receiving complaints about them, and those drivers later faced more serious sexual assault allegations. Uber's internal reviews indicated that earlier interventions could have prevented those incidents.
- Uber tracked trends indicating when sexual assaults by its drivers were more likely to occur, but chose not to publicly disclose those patterns for financial reasons.
- Uber considered the implementation of various safety measures to curb the frequency of sexual assaults by its drivers, including enhanced algorithms to match drivers and passengers, mandatory video recording, and pairing female passengers with female drivers, but failed to

[3] Gift link provided here: https://www.nytimes.com/2025/08/06/business/uber-sexual-assault.html?unlocked_article_code=1.v1A.sx6v.ezOnanA2jveX&smid=url-share

> implement those measures, citing financial, operational or other concerns.

Much of the *Times'* reporting was based on discovery developed in suits brought on behalf of women who were sexually assaulted while riding as Uber passengers. These and related allegations are a key element of thousands of claims that Uber faces nationwide, including the hundreds of claims brought by women for incidents occurring in Florida, and hundreds more that will be brought.

On December 22, 2025, the *Times* further reported on the scope of this grave problem, including Uber's efforts to mislead the public about sexual assaults by its drivers, and its decision to refrain from implementing tools that would dramatically reduce the frequency of sexual assaults.[4] The *Times* article described a Tampa case in which an Uber driver "was accused of raping a passenger who had been out celebrating her 21st birthday. The driver had eight felony convictions, including for robbery with a firearm in

[4] New York Times, "Uber Cleared Violent Felons to Drive. Passengers Accused them of Rape" (Dec. 22, 2025), Gift link at: https://www.nytimes.com/2025/12/22/business/uber-background-checks-sexual-assault.html?unlocked_article_code=1.v1A.tp_G.AGRnu91HVD6u&smid=url-share

2002, as well as more than a dozen driving violations." *Id.* The referenced passenger is the plaintiff in an action pending in the Thirteenth Circuit,[5] where, after the panel decision here, the trial court issued an Order dismissing all of the plaintiff's claims based on the panel's decision here. *See* Order on Pending Motions, A5,[6] granting leave to amend to plead claims pursuant to the panel's decision here.

Lyft has not been the subject of the same type of extensive investigative reporting, but Lyft itself has reported "more than 4,000 cases of sexual assault over 3 years."[7] This followed a release of data from Lyft for the period from 2017 through 2019. Among those data were 360 reports of rape by Lyft drivers of their passengers.

---

[5] *Doe v. Uber Technologies, Inc., et al.*, No. 23-CA-006624 (13th Cir.). The undersigned counsel is providing trial and appellate support for the plaintiff raped by an Uber driver in that case. While all of the Amici counsel represent women who have been sexually assaulted and are bringing claims against the TNC's, this brief is filed on behalf of the FJA, supporting the Appellant and victims of sexual misconduct bringing claims against Uber and Lyft.

[6] "A" stands for the Amici's Appendix to the Amicus Brief being filed simultaneously with this brief.

[7] *Washington Post*, "Lyft says it recorded more than 4,000 cases of sexual assault over 3 years," (Oct. 22, 2021), available at: https://www.washingtonpost.com/technology/2021/10/22/lyft-safety-report/?utm_source=chatgpt.com.

Like Uber, Lyft is facing many claims nationwide by its passengers who allege that they were sexually assaulted by Lyft drivers. At least a few hundred of those claims arise out of assaults which occurred in Florida.

II. The Court Should Certify Questions of Great Public Importance to the Florida Supreme Court.

Whereas the claims pursued by Appellant in this case were limited to "negligent and fraudulent misrepresentation" (Op. at 1), the claims pursued by the Amici are based on those claims, but also several additional theories that depend upon other forms of independent, tortious conduct by Uber and Lyft. Those claims include, for example: negligent selection and retention of drivers the TNCs knew or should have known to pose a safety risk; negligent failure to implement safety measures that would have mitigated the risk of sexual assaults; negligent failure to implement algorithmic tools already developed by the TNCs that would have mitigated the risk of sexual assaults; negligent failure to warn passengers of the significant risk of sexual assault, particularly given the information withheld from the public; and strict product liability for the

unreasonably dangerous risk of sexual assault posed through use of the Uber and Lyft apps.

In its decision, the panel suggested that the TNC Statute in subsection (18) creates a default rule of immunity for a TNC against not only Appellant's claims sounding in misrepresentation, but also a virtually limitless class of claims based on all forms of tortious conduct by a TNC, so long as one of the exceptions in subsection (18) does not apply. The panel reasoned that the limitation of liability contained within subsection (18) is not confined to vicarious liability claims, notwithstanding the fact that subsection (18)(b) expressly states, "This subsection does not alter or reduce … the liability of any person other than the vicarious liability of a TNC as described in paragraph (a)." (emphasis added).

The Amici believe that the Legislature was explicit that it was not shielding TNCs from liability for their own independent torts, which would include misconduct that is a proximate cause of a passenger's sexual assault. Nonetheless, the panel stated:

> The scope of immunity provided by Subsection 18's plain text is very broad. It appears to sweep in practically any claim against Lyft (or a similar rideshare network operator) for injury suffered during a ride, regardless of

> how Lyft may have directly caused or contributed to the injury—so long as Lyft otherwise complies with the requirements of the [TNC] statute (Section 627.748) and does not engage in criminal conduct.

(Op. at 1-2) (emphasis in original). Prior to the panel's decision, no appellate court applying the TNC Statute had analyzed the statute in this manner. For that matter, in the federal multi-district litigation where hundreds of Florida women have pursued claims against Uber after being sexually assaulted by Uber drivers, it does not appear that Uber had even asserted that the TNC Statute gives rise to such broad immunity to a TNC for its own independent torts.

If the panel's assessment of subsection (18) is correct, many of the clients of FJA members, and other sexual misconduct victims who have brought or will be bringing claims, may have no claims against Uber or Lyft at all, based upon Uber or Lyft's own wrongdoing. As interpreted by the panel here, the seemingly only way to avoid immunity for all claims where a TNC's own negligence has caused sexual assault against a TNC passenger is where the

victims are able to plead and prove one of the exceptions set forth in subsection (18)(a).

The plain language and structure of subsection (18) simply do not support the potential effect of the panel's decision: that a TNC might not be liable for the sexual assault of a passenger, even when the TNC's own tortious conduct is a cause of the assault.

As a matter of procedure, the panel's decision further suggests that every party pursuing such a claim has the obligation to affirmatively plead and establish facts of a TNC's noncompliance with the TNC Statute or other subsection (18)(a) exception in order to pursue a claim against a TNC. As the panel stated, "[t]he complaint needs to plead facts to overcome the immunity and background state of 'no liability,' unlike the case with a traditional affirmative defense." (Op. at 11) Prior to the panel's decision, no appellate court applying the TNC Statute had reached this conclusion either.

Still, if the panel's assessment is correct, plaintiffs filing new lawsuits may be unable to plead a subsection (18) exception at all — not because no exception exists, but because the facts that

would establish one lie almost entirely within the TNC's control. Whether the TNC conducted the required background check, re-screened the driver, authorized a driver its own records or internal policies show was disqualified, ignored a prior rider complaint, or owned or leased the vehicle, are matters proved through the TNC's internal records, as well as records of third parties it outsources background checks to, driver applications, screening and re-screening dates, vehicle-acquisition documents, complaint and suspension logs, and logon/log-off data. A passenger does not have access to any of this before suit, certainly a passenger not represented by counsel already familiar with these matters in other cases. (And even there, the case-specific details regarding a particular TNC driver are only available in discovery). Yet under the panel's interpretation of the TNC statute, the passenger must plead those very facts to survive dismissal — and often cannot obtain them until she survives dismissal. A plaintiff not already represented by counsel who has litigated against a TNC and developed its internal records may be unable to credibly allege in an initial complaint that the TNC failed to fulfill its statutory

obligations, was negligent under the statute, or engaged in criminal wrongdoing. And without those allegations, the panel has reasoned, dismissal is required.[8]

For the significant number of pending cases, they are potentially vulnerable to motions to dismiss or for summary judgment because a significant number of these filed cases do not include such allegations in the plaintiffs' own complaints. This played out just last month in the Tampa case mentioned above where a woman was brutally raped by an Uber driver who was an 8-time felon, and not legally authorized to drive for Uber at the time he raped the Uber passenger. A11. After 3 years of litigation, that case is now essentially beginning all over again, at least from a pleading perspective. *Id.*[9]

---

[8] The problem is compounded by the statute's records-retention period, which requires a TNC to retain driver and ride records for only one year. § 627.748(15). By the time a sexual-assault victim identifies counsel, investigates, and files, the very records needed to plead an exception may lawfully be gone — extinguishing the claim before it can be pleaded under the panel's interpretation of the statute.

[9] The plaintiff there filed an amended complaint on July 6, 2026, following the trial court's order dismissing the complaint with leave to amend, applying the panel's decision here. A15.

Nothing in Section 627.748 suggests the Legislature has established a framework where plaintiffs must plead and establish facts, to avoid TNC's being liable where their own negligence caused women to be sexually assaulted. The panel's reasoning writes into the statute a pleading burden the Legislature never wrote — one that demands, at the complaint stage, the very facts the statute often places within the TNC's exclusive control and which is shielded from the plaintiff until discovery opens. A plaintiff must now plead a subsection (18) exception, yet may not reach the records that would establish any of them until she survives the dismissal those facts are needed to defeat. The burden the panel imposes will inhibit or otherwise significantly impact each of the hundreds of claims pending in Florida courts, or that will be timely filed.

The Amici have good reason to believe that Uber and Lyft will make precisely such arguments in all cases that are pending here in Florida, not just the Tampa case mentioned above. The situation in the California state and federal proceedings, however, is far from clear. The California state and federal trial and district court judges

are not necessarily bound by the panel's decision. How the pleading and evidentiary stages will play out in those proceedings, involving hundreds of Florida sexual assault victims, is far from clear at this point.

Together, these circumstances faced by FJA members, the Amici, and their clients, present a compelling case for certification of a question of great public importance. In *Testa v. Town of Jupiter Island*, 360 So. 3d 722 (Fla. 4th DCA 2023), the panel certified a question of great public importance concerning the interpretation of a statute. *Id.* at 733-34. Judge Gerber concurred with the decision to certify a question and wrote separately, identifying six factors that should guide the Court in determining whether to certify a question:

> (1) the importance of the issue; (2) whether its resolution affects parties statewide versus only the individual litigant; (3) whether it is one of "first impression" or arises regularly; (4) whether caselaw is unclear; (5) the significance of judicial and public policy in its resolution; and (6) the relevance of intervening legal developments.

Id. at 734. In this case, as in *Testa*, all six factors except for factor (6) favor certification.

Even if reasonable minds may differ over the correctness of the panel's decision, they should not differ as to whether this case meets the criteria for certification. The number of litigants who may be affected by the decision is substantial, in the hundreds at least, and warrants certification, in accordance with the routine practices of this Court. *E.g.*, *Estate of Jones v. Mariner Health Care of Deland, Inc.*, 955 So. 2d 43, 49 (Fla. 4th DCA 2007); *State v. McKendry*, 614 So. 2d 1158, 1161 (Fla. 4th DCA 1993); *Siegle v. Progressive Consumers Ins. Co.*, 788 So. 2d 355, 362 (Fla. 4th DCA 2001); *City of Fort Pierce v. Treasure Marina, LC*, 195 So. 3d 1141, 1147 (Fla. 4th DCA 2016). Fundamentally, it is critical for litigants to know what they must plead and prove to pursue a cause of action, and whether they have a cause of action at all.

On that question, respectively the panel's decision raises as many questions as it answers. The panel held that a complaint "needs to plead facts to overcome the immunity and background state of 'no liability,'" (Op. at 11), but it did not define what those facts are or how specific they must be. The decision thus leaves unresolved the pleading questions that will govern every case that

follows: whether a plaintiff must identify the particular subsection violated and the particular disqualifying fact, or whether a general allegation of statutory non-compliance suffices; and whether — given that the operative facts often lie within the TNC's exclusive control and are often unavailable before suit — a plaintiff may plead the exception on information and belief, or must instead allege specific facts she may not have lawful means to obtain. These are not academic questions. They determine, at the threshold, whether hundreds of Florida victims may proceed at all. That the panel's rule generates this much uncertainty at the pleading stage is itself a reason to certify: the need for a definitive statement of what subsection (18) requires a plaintiff to allege.

In addition to the claims pending in Florida or that will be timely filed, Uber and Lyft are defending hundreds of claims brought by Florida residents, in California state and federal proceedings. Only resolution by the Florida Supreme Court can bring clarity and predictability to answer whether Subsection (18) reaches beyond vicarious liability and protects TNC's from their own negligence, whether the statute requires victims of sexual

misconduct to plead and prove an exception to open the courthouse doors, and whether sexual misconduct by TNC drivers arises out of passengers ordering a ride through a TNC network.

III. The Court Should Grant Rehearing or Rehearing En Banc, and Hold that the TNC Statute Does Not Immunize a TNC from Liability for Its Own, Independent Wrongdoing.

The Amici also support Appellant's request that the Court grant rehearing or rehearing en banc for the additional reasons provided by Appellant, including her argument that the TNC Statute does not operate to limit claims against a TNC, as paragraph 18(b) expressly states, "other than the vicarious liability of a TNC as described in paragraph (a)." (Appellant's Motion at 7-9).

As Appellant further shows, when an Uber or Lyft passenger asserts that she was injured as a result of wrongdoing by both a TNC and its driver, she is not asserting a claim for vicarious liability but rather one for derivative liability. (Motion at 15-17 (citing *Grobman v. Posey*, 863 So. 2d 1230, 1235-36 (Fla. 4th DCA 2003)); *see also Am. Home Assur. Co. v. Nat'l Railroad Pass. Corp.*, 908 So. 2d 459, 468 (Fla. 2005) ("[T]he doctrine of vicarious liability takes a

party that is free of legal fault and visits upon that party the negligence of another."); *Abner v. Lyft Florida, Inc.*, 422 So. 3d 1226, 1229 (Fla. 3d DCA 2025) (vicarious liability is based "solely on the legal imputation of responsibility for another party's tortious acts").

Appellant's construction of the TNC Statute also aligns with the statute's regulatory framework. If a TNC complies with the TNC Statute's requirements for vetting its drivers (and has not engaged in negligence or criminal wrongdoing, and has fulfilled every obligation with respect to its driver), there will be no liability for claims that a based solely on an agency or vicarious liability theory; i.e. a theory that imputes the driver's wrongdoing to a TNC that has done nothing wrong.

Certainly, that is the view that Uber recently took when commenting on proposed federal legislation that would limit the liability of a TNC on a nationwide basis. The U.S. House of Representatives is presently considering an amendment to the House Surface Reauthorization Bill (the "Fong Amendment"). H.R. 8870, 119th Cong. (as offered by Rep. Vince Fong, House Comm. on Transportation and Infrastructure, May 20, 2026) (Amendment

FONG_041_rev1). A11. The Fong Amendment includes a provision similar to the TNC Statute that would erect a national prohibition against holding a "network company" (the same as a TNC) liable "for harm to persons or property that results or arises out of the use, operation, or possession of a motor vehicle by an app-based driver" so long as the network company has not engaged in gross negligence or committed criminal wrongdoing.

In public comments by Uber, it responded to concerns that the Fong Amendment would "give rideshare companies immunity when passengers are sexually assaulted." According to Uber's President and Chief Legal Officer, "That is not true." J. Hazelbaker & T. West, letter addressed to Chairs Leger Fernandez and Dingell, June 5, 2026, at 1. A15. As Uber explained,

> The intent of the Fong Amendment is to address vicarious liability for auto-accident claims in situations where a company is sued not because of its own negligence or misconduct, but simply because it operates the app and is viewed as the deepest pocket. We share the concern that no company should be broadly shielded from accountability for sexual assault. And we do not believe the Fong Amendment would have that effect. The Amendment confronts a narrow question of transportation-related liability tied to the use and operation of motor vehicles. It clearly states that its purpose is to address "harm to persons or property that

> results or arises out of the use, operation, or possession of a motor vehicle by an app-based driver."
> ***
> Importantly, the goal of the Amendment is not to eliminate accountability. Transportation network companies should still be liable for their own negligence, misconduct, safety failures, or violations of law. And they would still have to maintain insurance, screen drivers, and comply with applicable safety regulations.

Id. (emphasis placed by Uber).

Uber's public statement about the effect of such a law is significant for three reasons. First, Uber's own construction of the phrase "arises out of the use, operation, or possession of a motor vehicle," contained in the Fong Amendment, is at odds with the panel's construction of an identical phrase in the TNC Statute. *See* Op. 7. As Appellant explains, an act of violence committed by the driver of a motor vehicle" against a passenger does not "arise out of the use, operation, or possession of a motor vehicle." (Motion at 21-24).

Second, laws of this type should not be construed to immunize a TNC from liability for its "own negligence or misconduct." Rather, as acknowledged by Uber's executives: "Transportation network companies should still be liable for their own negligence,

misconduct, safety failures, or violations of law." Uber's high-level executives have publicly acknowledged that the proposed federal legislation would operate to limit only claims where a TNC bears no fault. Subsection (18) is even more clearly limited to vicarious liability claims.

Third, "no company should be broadly shielded from accountability for sexual assault," and laws of this type should not be construed to create such a shield. The panel's decision likely provided Uber and Lyft with greater protection against such claims than any other state in the nation. The Legislature may be free to enact such a shield, but it should only come from an unambiguous statutory scheme. Subsection (18) does not reflect that unequivocal clarity. *See Thornber v. City of Ft. Walton Beach*, 568 So. 2d 914, 918 (Fla. 1990); *accord Emerson v. Lambert*, 374 So. 3d 756, 768 n.15 (Fla. 2023), explaining that when the Legislature amends the common law, it must do so unequivocally; and see Antonin Scalia & Bryan A. Garner, *Reading Law: The Interpretation of Legal Texts* § 52 (2012) ("A statute will be construed to alter the common law only when that disposition is clear.").

CONCLUSION

The Court should grant the relief requested by Appellant in her motion for rehearing and rehearing en banc. The panel should also certify questions of great public importance to the Florida Supreme Court.

Amici proposes the following certified questions of great public importance:

- Is the immunity that Section 627.748(18), Florida Statutes provides to TNC's apply to claims of direct or derivative liability where a TNC is alleged to be at fault in causing injuries to passengers who are the victims of sexual misconduct, or is Subsection (18) limited to claims where a TNC is alleged to be faultless and only vicariously liable for a driver's actions?[10]
- Must a plaintiff alleging she/he is a victim of intentional misconduct [including sexual misconduct] plead and prove an

[10] This question is similar to the Appellant's two proposed questions. Amici's second and third proposed questions are suggested as they reflect the clarity and predictability that the Florida Supreme Court's resolution of all of these issues would bring to the hundreds of victims and to the TNC's.

exception under Section 627.748(18)(a) in order to overcome any immunity granted to a TNC under this subsection?

- Does a claim against a TNC where one of its drivers is logged onto a TNC's digital network and accused of intentional misconduct against a rider arise out of the use, operation, or possession of a motor vehicle?

Respectfully submitted,

By: /s/ Andrew A. Harris
ANDREW A. HARRIS
Florida Bar No. 10061

CERTIFICATE OF SERVICE

WE HEREBY CERTIFY that on the 9th day of July, 2026, the foregoing was filed with the Florida Courts E-Filing Portal to the service list listed below:

David Joseph Sales, Esq.
Barnes Trial Group
1104 N Howard Ave Fl Street 3d
Tampa, FL 33607
(813) 251-0777
ds@btglaw.com

Andrew A. Harris, Esq.
Harris Appeals, P.A.
5220 Hood Road/Suite 201
Palm Beach Gardens, FL 33418
(561) 867-9500
andrew@harrisappeals.com
eservice@harrisappeals.com

Blair M. Fazzio, Esq.
Kanner & Pintaluga
6600 N. Military Trail, 2nd Floor
Boca Raton, FL 33496
Tel: (800) 586-5555
bfazzio@kpattorney.com
Counsel for the amici curiae

Scott M. Sarason
Michael Holt
Ligianette Cordova
Rumberger, Kirk & Caldwell, P.A.
80 S.W. 8th Street, Suite 3000
Miami, Florida, 33130
ssarason@rumberger.com
mholt@rumberger.com
lcordova@rumberger.com

Eric M. Tinstman
The Tinstman Law Firm, P.A.
7300 N. Kendall Drive, Suite 680
Miami, FL 33156
Eric@TheTinstmanLawFirm.com
Tere@TheTinstmanLawfirm.com

John S. Mills
Jonathan A. Martin
The Mills Firm, P.A.
501 Riverside Avenue, #906
Jacksonville, Florida 32202
jmills@mills-appeals.com
jmartin@mills-appeals.com
Counsel for Louise Haddad

Brigid F. Cech Samole
James E. Gillenwater
Bethany J. M. Pandher
Greenberg Traurig, P.A.
333 Southeast Second Avenue,
Suite 4400
Miami, FL 33131
Brigid.CechSamole@gtlaw.com
Gillenwaterj@gtlaw.com
Bethany.Pandher@gtlaw.com
miamiappellateservice@gtlaw.co
m
Counsel for Appellee Lyft
Florida, Inc.

By: /s/ Andrew A. Harris
ANDREW A. HARRIS
Florida Bar No. 10061

CERTIFICATE OF COMPLIANCE

Appellant hereby certifies that the type size and style of this Amicus Brief is Bookman Old Style, 14-point Font and the word count does not exceed 5,000 words. Therefore, this document complies with Florida Rule of Appellate Procedure 9.370(b).

By: /s/ Andrew A. Harris
ANDREW A. HARRIS
Florida Bar No. 10061